

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Edward Tsigel	Team: Squad #16	CCRB Case #: 202101400	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 02/18/2021 9:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/18/2022	Precinct: 120
Date/Time CV Reported Fri, 02/19/2021 3:52 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 03/03/2021 1:11 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Zaneta Bojarska	11348	960262	120 PCT
2. POM Emilio Miranda	19919	964007	120 PCT
3. POM Andrew Tagliaferro	22386	962827	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Robert Paholek	22797	962657	120 PCT
2. POM William Bennett	09915	961641	120 PCT
3. POM Nick Ou	11236	964692	120 PCT
4. POM Joseph Casale	24233	968998	120 PCT
5. POM Matthew Hodges	26993	967112	120 PCT
6. POM Theodore Clifford	24806	967817	120 PCT
7. POM Joseph Colao	18275	958417	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Emilio Miranda	Abuse: Police Officer Emilio Miranda forcibly removed § 87(2)(b) to the hospital.	A . Exonerated
B . POF Zaneta Bojarska	Force: Police Officer Zaneta Bojarska used physical force against § 87(2)(b)	B . Unsubstantiated
C . POM Andrew Tagliaferro	Force: Police Officer Andrew Tagliaferro used physical force against § 87(2)(b)	C . Unsubstantiated
§ 87(4-b), § 87(2)(g)	§ 87(4-b), § 87(2)(g)	§ 87(4-b), § 87(2)(g)
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Case Summary

On February 19, 2021, § 87(2)(b) called the IAB Command Center and filed this complaint via IAB log # 2021-4509. The CCRB received this complaint on March 3, 2021.

On February 18, 2021, at 9:30 PM, Police Officer Emilio Miranda, Police Officer Robert Paholek, Police Officer Zaneta Bojarska, Police Officer Andrew Tagliaferro, and additional officers, all from the 120th Precinct, responded to a 911 call at § 87(2)(b), in Staten Island, which involved a violent and suicidal Emotionally Disturbed Person (EDP). PO Miranda forcibly removed § 87(2)(b) to the hospital (**Allegation A– Abuse of Authority – Exonerated**). PO Bojarska and PO Tagliaferro kicked § 87(2)(b)'s legs (**Allegations B and C– Force – Unsubstantiated**).

§ 87(4-b), § 87(2)(g)

No arrests were made, or summons issued as a result of this incident.

The CCRB received 10 Body Worn Camera (BWC) videos of the incident (IA 76-85).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Emilio Miranda forcibly removed § 87(2)(b) to the hospital.

On February 18, 2021, at 9:30 PM, § 87(2)(b) (BR 01) was at her home at § 87(2)(b), in Staten Island with her two roommates when officers arrived to the location and knocked on her door. She opened the door and a group of officers told her that they received a call stating that she was suicidal and that she needed to go to the hospital with them. § 87(2)(b) refused to go to the hospital. § 87(2)(b) argued with the officers about going to the hospital for approximately 10 minutes. An officer then told her that she had no choice and had to go to the hospital. § 87(2)(b) finally agreed to go to the hospital with the officers and was taken to § 87(2)(b).

Between 0:00 and 14:00 of PO Miranda's BWC footage (BR 04), PO Miranda and other officers arrive to § 87(2)(b)'s house and speak to her at the front door. EMTs arrive at the scene and evaluate § 87(2)(b). An EMT tells § 87(2)(b) that her blood pressure is high. At 14:00, PO Miranda tells § 87(2)(b) that medical professionals made the decision to remove her to the hospital due to the nature of the call and because it was said that she was suicidal. At 14:20, § 87(2)(b) says that she won't go to the hospital. At 17:15, an EMT tells § 87(2)(b) that he called his boss who is the online medical controller, who stated that based on the nature of the call she must go to the hospital. The EMT told § 87(2)(b) that he explained to his boss that her vitals were stable and that she was not a threat to anyone, but his boss told him that she must go to the hospital regardless because they cannot leave people who are reportedly suicidal. At 21:00, § 87(2)(b) agrees to go to the hospital if she can smoke a cigarette. The officers provide her with a cigarette and she begins to walk outside to the ambulance.

At 8:00 of PO Paholek's BWC footage (BR 05), PO Paholek walks upstairs and speaks with § 87(2)(b)'s roommates, who tell PO Paholek that § 87(2)(b) is on drugs, including meth and dust. At 9:50, an EMT comes upstairs and the roommates tell him that § 87(2)(b) is suicidal, and is on drugs including meth, dope, crack, and dust. One roommate says that she called 911 but doesn't want § 87(2)(b) to know it was her. She also mentions that § 87(2)(b) cut herself in the past. All other BWC footage (IA 76-85) is consistent with PO Miranda's and PO Paholek's BWCs.

PO Miranda was not interviewed because the CCRB was able to make a determination without a statement from him. PO Miranda was one of the initial responding officers and primarily interacted with § 87(2)(b) therefore this allegation is being pled against him.

The CCRB received negative results for an Aided report for this incident (BR 06). The

Event (BR 07) is consistent with the BWC and states that § 87(2)(b)'s roommate called 911, identified herself as § 87(2)(b)'s roommate, and reported that § 87(2)(b) was suicidal, violent, and under the influence of crystal meth, dope, and alcohol. The threat, resistance, and injury report (TRI) (BR 08) is consistent with the information discussed above. The 911 call recording (BR 09) and radio communications (BR 09) are consistent with the information discussed above and confirm that officers were notified of § 87(2)(b)'s above-mentioned condition.

Patrol Guide Procedure 216-01 (BR 10) states that in any occurrence which requires that a person, other than a prisoner, receive medical aid or assistance including but not limited to, individuals who are mentally ill, officers must cooperate with and assist ambulance/hospital personnel in every reasonable manner.

EMS was automatically dispatched to the scene when the 911 call involved a violent and suicidal female individual. BWC footage shows that EMTs evaluated § 87(2)(b) and received information from § 87(2)(b)'s roommates which led them to make the decision that § 87(2)(b) needed to be removed to the hospital. § 87(2)(g) It is therefore recommended that **Allegation A** be **Exonerated**.

Allegation (B) Force: Police Officer Zaneta Bojarska used physical force against § 87(2)(b)

Allegation (C) Force: Police Officer Andrew Tagliaferro used physical force against § 87(2)(b)

§ 87(2)(b) stated that when she was walking to the ambulance, she knocked on her neighbor's door because she believed he called 911 on her. Immediately after she knocked on the door, officers around her grabbed her and placed her into handcuffs. While she was being handcuffed an officer behind her, who she did not see, kicked her lower leg at least three times. § 87(2)(b) did not sustain any injuries due to being kicked.

From 21:00 to 22:00 of PO Bojarska's BWC footage (BR 11), § 87(2)(b) exits her house and lunges towards an officer while yelling "You cock sucker," and knocks on her neighbor's door. A group of officers, including PO Bojarska and PO Tagliaferro grab § 87(2)(b) and handcuff her. PO Bojarska and PO Tagliaferro are the two officers who are behind § 87(2)(b) during this physical altercation and who handcuff her. At 21:30, while being handcuffed, § 87(2)(b) yells "Don't hit me" multiple times and then says, "Everyone seen you hit me, fucking police brutality." § 87(2)(b) is then escorted to the ambulance. PO Tagliaferro's BWC footage (BR 12) is consistent with PO Bojarska's BWC and provides an alternative angle. At no point throughout any BWC footage (IA 76-85) is any officer seen kicking or hitting § 87(2)(b) in any way, however the angles of the footage do not capture the legs and feet of § 87(2)(b) or the officers during the physical altercation.

PO Bojarska (BR 02) and PO Tagliaferro (BR 03) both denied that they ever kicked or hit § 87(2)(b) in any way or saw any other officers do so.

The TRI report (BR 08) states that § 87(2)(b) filed a complaint with the IAB that an officer kicked her leg while she was being handcuffed. The IAB conducted an investigation in which they informally interviewed PO Bojarska and PO Miranda, reviewed BWC footage, interviewed § 87(2)(b) and took photographs of § 87(2)(b)'s legs. The IAB determined that the officers used minimal force to restrain § 87(2)(b) and did not kick her.

§ 87(2)(g) It is therefore recommended that **Allegations B and C** be **Unsubstantiated**.

§ 87(4-b), § 87(2)(g)

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 15).
- Police Officer Emilio Miranda has been a member-of-service for 4 and this is the first CCRB complaint to which he has been a subject.
- Police Officer Zaneta Bojarska has been a member-of-service for 6 and this is the first CCRB complaint to which she has been a subject.
- Police Officer Andrew Tagliaferro has been a member of service for 5 years and has been a subject in 2 CCRB complaints and 3 allegations, none of which were substantiated.

○ § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of March 25, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (BR 17).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 16

Investigator: Edward Tsigel Investigator Edward Tsigel 3/23/2022
Signature Print Title & Name Date

Squad Leader: Patrick Yu IM Patrick Yu 03/25/2022
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date